

# Children's Ombudsman or The Defender of Children's Rights: What's within his reach and what's not



As of 1 July 2025, children's rights are being protected by the Children's Ombudsman. In the following text, you will learn about the Children's Ombudsman's role – how he can help in individual cases, who can write to the Ombudsman and what he can do if he identifies an error made by an authority, facility or other party. You will also find out what to do before you write to the Children's Ombudsman, what to include in your letter and how to write it. Finally, we will explain how the Children's Ombudsman contributes to the protection of children's rights.

**Children themselves (up to their 18th birthday)** can write to the Children's Ombudsman at [deti@ochrance.cz](mailto:deti@ochrance.cz), call +420 542 542 888 (on business days from 8:00 a.m. to 4:00 p.m.), or go to [deti.ochrance.cz](https://www.ochrance.cz).

In this leaflet, we sometimes refer to the Ombudsman's leaflets. You can find them at [www.ochrance.cz](https://www.ochrance.cz) in the [I am not sure how to deal with a difficult life situation](#) section.

## Who is the Children's Ombudsman?

As of March 31, 2026, **Martin Beneš** has served as the Children's Ombudsman (for a term of 6 years).

## What does the Children's Ombudsman do?

The Children's Ombudsman protects **the rights of children (people under 18)**:

- **in the cases of individual children**, he inquires into the procedure of authorities, facilities and various institutions and persons in public administration; and
- **generally** (systematically), he monitors and promotes children's rights under the [Convention on the Rights of the Child](#) and other international treaties (more [at the end of the leaflet](#) ).

## What is the difference between the Ombudsman and the Children's Ombudsman?

**The Children's Ombudsman**, unlike the Ombudsman, **will examine the actions of authorities**, specific facilities, and other institutions and persons when it concerns the **rights of children**.

Both of them have new additional tasks, as the Children's Ombudsman also **monitors and enforces the implementation of children's rights in general**, and the Ombudsman monitors and enforces the implementation of fundamental rights and freedoms.

Together, they will **visit the facilities** where children live and spend time, and **monitor whether the rights of children with disabilities are correctly implemented and protected**.

## Who can write to the Children's Ombudsman?

You can write to the Children's Ombudsman if you are:

- **a child** in need of help,
- **a parent or other adult close to the child** concerned about a violation of the child's rights,
- **a teacher, health worker, public servant, social worker and others** who wish to draw attention to a violation of a child's rights ([without breaching confidentiality obligations](#)),
- **anyone** who wants to draw attention to a general (systemic) problem affecting children's rights.

## What can the Children's Ombudsman do to help an individual child?

The Children's Ombudsman can inquire into the actions of authorities, facilities and various institutions and persons in public administration; This includes those who:

- decide on the rights and obligations of individual children or on matters that affect children's rights in general,
- protect children and their rights or
- care for or help children.

Such authorities, facilities, and persons include, for example:

- **bodies for social and legal protection of children (OSPOD)**, mainly municipal authorities (see the leaflet [Social and-legal protection of children](#) for more information),
- **Labour offices** that decide on child benefits (e.g. child benefit, [allowance for care, extraordinary immediate allowance for children](#), allowance to cover the needs of a child in foster care, etc.) or child employment matters,
- **the Social Security Administration**, which decides, for example, on orphans' pensions,
- **directors of schools and educational facilities**, for example when they decide whether to admit, exclude or transfer a child, etc.,
- **the School Inspectorate**, which inspects the activities of schools and educational facilities based on suggestions and complaints,
- **school counselling centres** (special education centres, pedagogical-psychological counselling centres) if they issue reports and recommendations,
- **health insurance companies**, for example when they decide whether to reimburse health services from public health insurance (see the leaflet [Health insurance companies' reimbursement decisions](#) for more information),
- **various facilities for children** (e.g. children's homes, diagnostic and educational institutions),
- **regional authorities**, which, for example, decide on appeals in various administrative proceedings or handle [complaints in the healthcare sector](#),
- **ministries**, for example, the Ministry of Labour and Social Affairs in cases of benefits and pensions or the Ministry of the Interior in cases of children seeking [asylum](#), [temporary protection due to the war in Ukraine](#) or other [residence permits](#), or children staying with their parents in [facilities for foreigners](#),
- **Presidents of courts responsible for the state administration of courts**, for example when dealing with complaints about delays in court proceedings or inappropriate behaviour of judges and judicial officials (see the leaflet [Courts](#) for more information),
- **municipalities and administrative regions** in providing education, social services and good living conditions and safety for children; for example, municipalities ensure that children in their territory can attend compulsory school education, while regions ensure that special schools, social services (such as early childhood care or homes for people with disabilities) and certain types of health services are available in their territory,
- **and many others.**

## Will the Children's Ombudsman help with discrimination?

The Children's Ombudsman can help if a child is discriminated against or not protected from discrimination by the authorities, facilities for children or other persons in public administration.

Other cases of discrimination (in private relationships) can be examined by the Ombudsman.

## In which cases does the Children's Ombudsman not have the ability to help?

In most cases, the Children's Ombudsman **cannot directly help a child with private matters unless the authorities can also look into the matter**. This applies to disputes with other people (for example, within the family, among classmates or at work) or with companies (for example, relating to a loan or a purchase).

**The Ombudsman cannot change a court decision or influence criminal proceedings either.**

## What if the Children's Ombudsman cannot deal with the child's case?

If the Children's Ombudsman is unable to deal with the child's case, he will **tell the writer and explain how they can proceed**.

If a child writes to the Children's Ombudsman and their case **could be handled by another authority**, the Ombudsman will **ask the child** whether they would like the case to be referred. If so, he will refer the case to the relevant authority.

## What does the Children's Ombudsman do when he identifies an error?

If the Children's Ombudsman finds **an error made by an authority (a facility or other party)**, he **urges the authority to correct it** ( for example, by changing the decision or future approach, or by taking the required action if it has been inactive.)

**He cannot make a decision on behalf of the authority, nor can he change or overrule its decisions.** This has to be done by the authority itself or by its superior body. Neither can he punish the public servants who erred.

If the issue is not resolved, the Ombudsman notifies the relevant supervisory body and may choose to publish the case.

In exceptional circumstances, the Ombudsman may suggest initiating court proceedings or take part in them. For more information, see the leaflet [Children's Ombudsman: helping in other ways \(special powers\)](#).

## Is there anything I need to do before I write to the Children's Ombudsman about a child's case?

Before contacting the Children's Ombudsman, you should **first request** that the person or party you are complaining about **correct their error or take action** if they have failed to do so.

## What information should I include and send to the Children's Ombudsman regarding a child's case?

**Include the following information:**

- **your name, surname and contact information** (permanent address, telephone number or email so that we can act as quickly as possible),
- **the child's name, their current age, and the relationship** you have with the child (daughter, grandchild, pupil, ...),

- **who you are complaining about** (an authority, facility or other party); you can also name the person you have discussed the issue with,
- **what went wrong, what you are complaining about,**
- **what you want to achieve**, what you think is the best solution,
- **what you have done so far** – how you have defended the rights of the child and what the result was.

**Additionally, you should attach copies of the authority's decision**, if issued, or any other relevant documents you have on the case.

### How can I contact the Children's Ombudsman?

**An adult** who writes for a child can:

- send an **email** to [podatelna@ochrance.cz](mailto:podatelna@ochrance.cz),
- fill in the **online** submission (at [portal.ochrance.cz](https://portal.ochrance.cz)),
- **send a letter** to the address Údolní 39, 602 00 Brno,
- send a **message to the data box** jz5adky or
- **visit** the office of the Children's Ombudsman on Mondays or Wednesdays from 8:00 a.m. to 4:00 p.m. at Údolní 39 in Brno. (We will file the submission, but we will not resolve the case immediately.)

### What if I forget something?

Don't worry, if there is any information missing, we will contact you and ask you to provide it.

### When is the Children's Ombudsman not required to deal with a case?

The Children's Ombudsman does not have to deal with a case if:

- **he has not received important information and documents**, even when they were requested,
- he considers **the procedure** of the authority (facility, other party) to **be correct** (he will explain this to you clearly),
- the claimed error could not have affected the outcome, or the consequences are minor,
- **more than a year has passed** since the last incident in the presented case,
- the case (alleged misconduct) is **pending before the court** or has already been decided,
- the Ombudsman or Children's Ombudsman **has dealt with the case before** and nothing new has happened since.

### How does the Children's Ombudsman monitor and enforce children's rights?

Children's Ombudsman

- **monitors and evaluates** how children's rights are protected in the Czech Republic (conducts research and analysis, issues reports, opinions and recommendations),
- **proposes improvements**, including changes to legislation or ratification of an international treaty,
- **educates** children and the public and
- **cooperates** with other organisations both within the country and abroad.

## How does the Children's Ombudsman find out what children need or what is troubling them?

The Children's Ombudsman will build on the Ombudsman's work and will continue to work with him in mutual cooperation. He will gain further information and experience through handling complaints and visiting facilities, as well as through new activities aimed at monitoring and promoting children's rights. **Children themselves, as well as organisations** that focus on children and defend their rights will contribute to the Children's Ombudsman's work. This includes:

- **an advisory body** composed of selected children and
- **working groups set up by the Children's Ombudsman to focus on specific topics**, which will include children and those who defend their rights.